

IN THE COURT OF APPEALS OF MISSISSIPPI**MATTHEW OLIVER REARDON****APPELLANT****VERSUS****NO. 2020-CP-1259-COA****STATE OF MISSISSIPPI****APPELLEE****MOTION FOR ENLARGEMENT OF TIME
WITHIN WHICH TO FILE BRIEF FOR APPELLEE**

COMES NOW Appellee, through undersigned counsel, and moves this Court to grant thirty (30) days, until January 6, 2022 within which to file the Brief for Appellee in the above-styled and numbered cause.

I.

The Brief for Appellee is due December 3, 2021. No other extension has been requested. Further, counsel for Appellee has other briefs that require answering which prevents completion of this brief immediately. Counsel requests the extension of time in order to fit within her calendar of other briefs and their respective due dates.

II.

Counsel respectfully submits that the amount of time requested is reasonable under the circumstances and is not made for purposes of

mere delay, nor is it the consequence of a lack of attention by the undersigned.

WHEREFORE, PREMISES CONSIDERED, Appellee respectfully moves this Court to extend the time within which to file its brief until January 6, 2026.

LYNN FITCH
Attorney General of Mississippi

BARBARA BYRD
Special Assistant Attorney General
Mississippi Bar No. 104233
P.O. Box 220
Jackson, Mississippi 39205-0220
Telephone: (601) 359-4169
E-mail: Barbara.Byrd@ago.ms.gov

Counsel for Appellee

CERTIFICATE OF SERVICE

I, Barbara Byrd, do hereby certify that I have electronically filed the foregoing document with the Clerk of the Court using the MEC system, which sent notification to all counsel of record, and mailed, via U.S. Mail, postage pre-paid to the following:

Honorable John Kelly
Circuit Judge
102 N. Main Street, Ste. F
Ripley, MS 38663

Honorable Ben Creekmore
District. Attorney
111 East Main Street
New Albany, MS 38652

THIS, the 7th day of December, 2021.

LYNN FITCH
Attorney General of Mississippi

/s/ Barbara Byrd
BARBARA BYRD
Special Assistant Attorney General
Counsel for Appellee